

26STCV00750 26STCV00750

County: los-angeles

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Case Number: 26STCV00750 Hearing Date: August 25, 2026 Dept: 310

Tentative Ruling

Judge Kevin C. Brazile

Department 310

Hearing Date: August 25, 2026

Case Name: Rose v. Artiano Shinoff, APC, et al.

Case No.: 26STCV00750

Matter: Anti-SLAPP Motion

Moving Party: Defendants Artiano Shinoff, APC, Gil Abed, Paul Carelli IV, and Maurice

Bumbu

Responding Party: Plaintiff Joseph Rose

Notice: OK

Ruling: The Motion is granted.

Moving party to give notice.

The Court encourages all parties to appear remotely via LA

CourtConnect. If submitting on the Court's tentative ruling, please follow the instructions provided above.

On March 25, 2026, Plaintiff Joseph Rose, a pro per litigant, filed the operative First Amended Complaint ("FAC"). Plaintiff alleges that evidence subject to a protective order from his underlying action (22STCV37608) against LAUSD was improperly disclosed and weaponized in the Jane Doe K.D. v. LAUSD case (22TRCV01592), and conversely, restricted evidence from the K.D. case was imported back into 22STCV37608. Plaintiff asserts that this illicit exchange of discovery was orchestrated to manipulate litigation strategies and gain an unfair collateral advantage in both proceedings. Plaintiff's causes of action target Defendants' representations to the court and their litigation strategy in attempting to settle these cases.

On April 27, 2026, Defendants Artiano Shinoff, APC, Gil Abed, Paul Carelli IV, and Maurice Bumbu filed an anti-SLAPP Motion as to the entirety of the FAC.

Legal Standard

Code of Civil Procedure section 425.16 sets forth the procedure governing anti-SLAPP motions. In pertinent part, the statute states, "A cause of action against a person arising from any act of that person in furtherance of the person's right of petition or free speech under the United States Constitution or the California Constitution in connection with a public issue shall be subject to a special motion to strike, unless the court determines that the plaintiff has established that there is a probability that the plaintiff will prevail on the claim." (Code Civ. Proc. § 425.16(b)(1).) The purpose of the statute is to identify and dispose of lawsuits brought to chill the valid exercise of a litigant's constitutional right of petition or free speech. (Code Civ. Proc. § 425.16(a); *Sylmar Air Conditioning v. Pueblo Contracting Services, Inc.* (2004) 122 Cal.App.4th 1049, 1055-1056.)

Courts employ a two-step process to evaluate anti-SLAPP motions. (*Equilon Enterprises v. Consumer Cause, Inc.* (2002) 29 Cal.4th 53, 61.) To invoke the protections of the statute, the defendant must first show that the challenged lawsuit arises from protected activity, such as an act in furtherance of the right of petition or free speech. (*Ibid.*) From this fact, courts " 'presume the purpose of the action was to chill the defendant's exercise of First Amendment rights. It is then up to the plaintiff to rebut the presumption by showing a reasonable probability of success on the merits.' " (*Ibid.*) In determining whether the plaintiff has carried this burden, the trial court considers "the pleadings, and supporting and opposing affidavits stating the facts upon which the liability or defense is based." (Code Civ. Proc. § 425.16(b)(2); see *Soukup v. Law Offices of Herbert Hafif* (2006) 39 Cal.4th 260, 291 ("*Soukup*").)

Protected Activity

To meet their burden for the first prong of the anti-SLAPP analysis, Defendants must demonstrate that Plaintiff's causes of action arise from protected activity. That is, it must be that "defendant's conduct by which plaintiff claims to have been injured falls within one of the four categories described in subdivision (e) . . . 'the act underlying the plaintiff's cause' or 'the act which forms the basis for the plaintiff's cause of action' must itself have been an act in furtherance of the right of petition or free speech.' " (*Equilon Enterprises v. Consumer Cause, Inc.* (2002) 29 Cal.4th 53, 63 (internal citations omitted).)

An " 'act in furtherance of a person's right of petition or free speech under the United States or California Constitution in connection with a public issue' includes: (1) any written or oral statement or writing made before a legislative, executive, or judicial proceeding, or any other official proceeding authorized by law, (2) any written or oral statement or writing made in connection with an issue under consideration or review by a legislative, executive, or judicial body, or any other official proceeding authorized by law, (3) any written or oral statement or writing made in a place open to the public or a public forum in connection with an issue of public interest, or (4) any other conduct in furtherance of the exercise of the constitutional right of petition or the constitutional right of free speech in connection with a public issue or an issue of public interest." (Code Civ. Proc. § 425.16(e).)

Code Civ. Proc. § 425.16(e)(1) relates to statements made before an official proceeding.

Code Civ. Proc. § 425.16(e)(2) relates to statements made in connection with an issue under consideration by a government body. (See *City of Costa Mesa v. D'Alessio Investments LLC* (2013) 214 Cal.App.4th 358, 372-273.) The challenged statements need not be made before an official body, but must "relate[] to the substantive issues in the [underlying] litigation and [must be] directed to persons having some interest in the litigation." (*Neville v. Chudacoff* (2008) 160 Cal.App.4th 1255, 1266.) The defendant need not separately demonstrate that a statement or writing concerned an issue of public significance if it was made in connection with an issue under consideration or review by an official proceeding or body. (*Briggs v. Eden Council for Hope and Opportunity* (1999) 19 Cal.4th 1106, 1113.)

The entirety of the FAC arises from protected activity because it solely targets Defendants' allegedly improper use of evidence in two different lawsuits to gain an advantage, as well as supposedly false statements made by opposing counsel during the course of litigation. Each and every cause of action in the FAC is a tort or derivative claim based on such litigation conduct. Defendants have carried their burden to show the FAC arises from protected activity.

(c) Minimal Merit

On the second component of the analysis, courts employ a "summary-judgment-like" procedure, "accepting as true the evidence favorable to the plaintiff and evaluating the defendant's evidence only to determine whether the defendant has defeated the plaintiff's evidence as a matter of law." (*Gerbosi v. Gaims, Weil, West & Epstein, LLP* (2011) 193 Cal.App.4th 435, 444.) In other words, the Court does not assess credibility, and the plaintiff is not required to meet the preponderance of the evidence standard. The Court accepts as true the evidence favorable to the plaintiff, who need only establish that his or her claim has "minimal merit" to avoid being stricken as a SLAPP. (*Soukup, supra*, 39 Cal.4th at p. 291.)

The litigation privilege set forth in Civ. Code § 47 generally applies "to any communication (1) made in judicial or quasi-judicial proceedings; (2) by litigants or other participants authorized by law; (3) to achieve the objects of the litigation; and (4) that have some connection or logical relation to the action." (*Silberg v. Anderson* (1990) 509 Cal.3d 205, 212.) The "principle purpose of [the litigation privilege] is to afford litigants . . . the utmost freedom of access to the courts without fear of being harassed subsequently by derivative tort actions." (*Id.* at p. 213.) "The litigation privilege is . . . relevant to the second step in the anti-SLAPP analysis in that it may present a substantive defense a plaintiff must overcome to demonstrate a probability of prevailing." (*Flatley v. Mauro* (2006) 39 Cal.4th 299, 323.)

Here, the litigation privilege bars all of Plaintiff's fraud, negligent representation, IIED, and abuse of process tort claims, as well as the derivative claims. (See *Rubin v. Green* (1993) 4 Cal.4th 1187, 1203.) This is because each and every cause of action is premised on the use of evidence in two lawsuits to gain an advantage or statements made by opposing counsel in the course of advancing the litigations. Plaintiff failed to show that the FAC has minimal merit.

Thus, the Anti-SLAPP Motion is granted. The FAC is stricken and dismissed.

Moving party to give notice.